

TENTATIVE RULING

Miguel Jimenez, dba MJ Construction and Home Repairs

v.

Lora James
25CV005889

Defendant's Motion for Order for Time Extension for Responsive Pleading

Hearing Date: June 26, 2026

The motion by Defendant Lora James ("Defendant") to extend the time to file a response to Plaintiff Miguel Jimenez's ("Plaintiff") Complaint is **DENIED**.

On April 3, 2026, the parties were served with the Order Denying Defendant's Motion to Quash ("Order"). In the relevant part, the Order states that "Defendant has 15 days from the date of service of the [Order] to file and serve a response to the Complaint." Because the 15th day falls on a Saturday, April 18, Defendant had until Monday, April 20, to file and serve a responsive pleading. [Code Civ. Proc. §§ 12a, 12b, 418.10, subd. (c).] No default may be entered against Defendant before the expiration of the time to plead. [Code Civ. Proc. § 418.10, subd. (d).]

Since the Defendant did not file a responsive pleading by April 20, Plaintiff requested, and the Court entered, Defendant's default on April 24 around 9:19 a.m. Once default was entered, the Court lost jurisdiction to consider Defendant's later request for an extension of time to respond, which was filed about six hours after the default. [*W.A. Rose Co. v. Municipal Court* (1959) 176 Cal.App.2d 67, 72 ("The subsequent untimely filings by appellant and motions made by respondent did not affect the duty of the clerk to enter default when requested, nor did they restore the jurisdiction to the court which was lost when default should have been entered."); *Forbes v. Cameron Petroleums, Inc.* (1978) 83 Cal.App.3d 257, 262 ("It is clear that defendants' demurrer was a legal nullity when it was filed. Since defendants' default had already been entered, they had no standing to file any responsive pleading without first obtaining relief from the default.")].

Accordingly, Defendant's motion is **DENIED**. The Further Case Management Conference set for July 21, 2026, at 9 a.m. and the Prove-Up Hearing on August 11, 2026, at 10 a.m., both in Department 14, are **MAINTAINED**.

Plaintiff shall prepare the Proposed Order consistent with this Tentative Ruling.